William A. Delgado (SBN 222666)
wdelgado@dtolaw.com
DTO LAW
915 Wilshire Boulevard, Suite 1950
Los Angeles, California 90017
Telephone: (213) 335-6999
Facsimile: (213) 335-7802

Richard Z. Lee (SBN 338126)
rlee@dtolaw.com
DTO LAW
702 Marshall Street, Suite 640
Redwood City, California 94063
Telephone: (415) 630-4100
Facsimile: (415) 630-4105

Attorneys for Defendant
MORNING LAW GROUP, P.C.

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

DANIEL C. WINE,
Plaintiff,
v.
MORNING LAW GROUP, P.C.,
Defendant.

Case No.: 2:26-cv-02243-TLN-CSK
Hon. Troy L. Nunley
U.S. Magistrate Judge Chi Soo Kim

DEFENDANT MORNING LAW GROUP, P.C.'S NOTICE OF MOTION AND MOTION TO DISMISS OR, IN THE ALTERNATIVE, FOR MORE DEFINITE STATEMENT; MEMORANDUM OF POINTS AND AUTHORITIES

Filed concurrently with Request for Judicial Notice, Declaration of William A. Delgado, and Proposed Order

Date: October 15, 2026
Time: 2:00 p.m.
Place: Courtroom 2

Action Filed: June 24, 2026

TO THE COURT, ALL PARTIES, AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that on October 15, 2026, at 2:00 p.m., or as soon thereafter as the matter may be heard, in Courtroom 2 of the above-captioned Court, located at 501 I Street, Suite 4-200, Sacramento, California 95814, before the Honorable Troy L. Nunley, Defendant Morning Law Group, P.C. ("MLG") will and hereby does move to dismiss Plaintiff's Complaint pursuant to Federal Rule of Civil Procedure 12(b)(6). In the alternative, Defendant moves for a more definite statement pursuant to Federal Rule of Civil Procedure 12(e).

The Motion is made on the grounds that the Complaint fails to state any claim against MLG because the alleged enrollment, contract, representations, payments, and attorney-client relationship predate MLG's existence; the Complaint pleads no basis for attributing any predecessor's conduct or liabilities to MLG; the judicially noticeable bankruptcy sale documents bar successor-liability theories; and each cause of action is otherwise deficient under the applicable pleading standards. In the alternative, the Complaint is so vague and ambiguous as to MLG's alleged conduct that MLG cannot reasonably frame a response.

This Motion is based upon this Notice, the accompanying Memorandum of Points and Authorities, the accompanying Request for Judicial Notice and Declaration of William A. Delgado, the complete record in this action, and such other matters and arguments as may come before this Court, including those raised in any reply memorandum and oral argument.

The parties met and conferred on August 24, 2026 pursuant to Section 4(A) of the Court's Civil Standing Order. During that conference, Plaintiff's counsel indicated that Plaintiff intended to amend the Complaint to address certain of MLG's concerns. As of the filing of this Motion, Plaintiff has not filed an amended complaint or dismissal, necessitating this Motion.

Dated: September 4, 2026

DTO LAW

By: /s/ William A. Delgado
William A. Delgado
Attorneys for Defendant
MORNING LAW GROUP, P.C.

TABLE OF CONTENTS

	Page
I. INTRODUCTION	1
II. RELEVANT FACTS	1
A. The Complaint's Allegations	1
III. ARGUMENT	2
D. In the Alternative, the Court Should Grant MLG's Motion for a More Definite Statement Under Rule 12(e).	2
IV. CONCLUSION	3

TABLE OF AUTHORITIES

Cases

A.B. Concrete Coating Inc. v. Wells Fargo Bank, Nat'l Ass'n, 491 F. Supp. 3d 727 (E.D. Cal. 2020) 13

Adamson v. City & Cnty. San Francisco, 2017 WL 2902944 (N.D. Cal. July 7, 2017) 7

Alan Neuman Prods., Inc. v. Albright, 862 F.2d 1388 (9th Cir. 1988) 9

Albrecht v. Lund, 845 F.2d 193 (9th Cir.) 10

Apollo Cap. Fund, LLC v. Roth Cap. Partners, LLC, 70 Cal. Rptr. 3d 199 (Cal. Ct. App. 2007) 14

Ashcroft v. Iqbal, 556 U.S. 662 (2009) 4, 11

Assoc. Gen. Contractors of Cal., Inc. v. Cal. State Council of Carpenters, 459 U.S. 519 (1983) 4

Balistreri v. Pacifica Police Dep't, 901 F.2d 696 (9th Cir. 1990) 4

Bell Atl. Corp. v. Twombly, 550 U.S. 544 (2007) 4

Beluca Ventures LLC v. Aktiebolag, 622 F. Supp. 3d 806 (N.D. Cal. 2022) 6

BHRS Grp., LLC v. Brio Water Tech., Inc., 553 F. Supp. 3d 793 (C.D. Cal. 2021) 16

Bly-Magee v. California, 236 F.3d 1014 (9th Cir. 2001) 5

Casault v. Fed. Nat. Mortg. Ass'n, 915 F. Supp. 2d 1113 (C.D. Cal. 2012) 10

Cleveland v. Groceryworks.com, LLC, 200 F. Supp. 3d 924 (N.D. Cal. 2016) 16

CMA CGM Asia Shipping Pte. Ltd. v. Transform Holdco LLC, 2022 WL 19076806 (C.D. Cal. Dec. 14, 2022) 7

Comm. for Immigrant Rts. of Sonoma Cnty. v. Cnty. of Sonoma, 644 F. Supp. 2d 1177 (N.D. Cal. 2009) 5, 17

Cousin v. Sharp Healthcare, 681 F. Supp. 3d 1117 (S.D. Cal. 2023) 14

Donohue v. Apple, Inc., 871 F. Supp. 2d 913 (N.D. Cal. 2012) 13

Enriquez v. Countrywide Home Loans, FSB, 814 F. Supp. 2d 1042 (D. Haw. 2011) 11

Guerrero v. Halliburton Energy Servs., Inc., 231 F. Supp. 3d 797 (E.D. Cal. 2017) 16

Jocer Enterprises, Inc. v. Price, 107 Cal. Rptr. 3d 539 (Cal. Ct. App. 2010) 15

Kearns v. Ford Motor Co., 567 F.3d 1120 (9th Cir. 2009) 5

Khoja v. Orexigen Therapeutics, Inc., 899 F.3d 988 (9th Cir. 2018) 4

Korea Supply Co. v. Lockheed Martin Corp., 63 P.3d 937 (Cal. 2003) 16

Lombardo v. Huysentruyt, 110 Cal. Rptr. 2d 691 (Cal. Ct. App. 2001) 14

McClintock v. West, 162 Cal. Rptr. 3d 61 (Cal. Ct. App. 2013) 14

Parlante v. Cazares, 2012 WL 525690 (E.D. Cal. Feb. 16, 2012) 15

Ritchie Bros. Auctioneers (Am.) Inc. v. Suid, 2018 WL 721663 (W.D. Wash. Feb. 6, 2018) 8

Tan v. GrubHub, Inc., 171 F. Supp. 3d 998 (N.D. Cal. 2016) 15

Vess v. Ciba-Geigy Corp. USA, 317 F.3d 1097 (9th Cir. 2003) 5

Zetz v. Bos. Sci. Corp., 398 F. Supp. 3d 700 (E.D. Cal. 2019) 5, 9

Statutes

11 U.S.C. § 101(5) 3, 7

11 U.S.C. § 101(37) 3

11 U.S.C. § 105(a) 7

15 U.S.C. § 1679a(3)(A) 11

Cal. Civ. Code §§ 1788.301(a), (b) 11

Cal. Civ. Code §§ 1789.12(d), (e)(5) 11

Cal. Corp. Code § 200(c) 6

Other Authorities

Fed. R. Civ. P. 9(b) ..... passim

Fed. R. Civ. P. 12(b)(6) 1, 4, 8

Fed. R. Civ. P. 12(e) 1, 5, 17, 18

MEMORANDUM OF POINTS AND AUTHORITIES

I. INTRODUCTION

Plaintiff Daniel C. Wine's Complaint depends on a threshold premise that cannot support liability against Morning Law Group, P.C. ("MLG"). According to the Complaint, the alleged debt-resolution relationship between Plaintiff and MLG began in October 2021. Nevertheless, MLG did not even exist until August 17, 2022. If Plaintiff entered into a relationship in October 2021 with some entity, it wasn't with MLG, and the Complaint fails to identify that entity or a viable theory for attributing that entity's conduct or liabilities to MLG.

The only apparent connection is a bankruptcy sale in August 2023 through which MLG acquired certain assets of a firm called The Litigation Practice Group, P.C. ("LPG"). But even that connection does not save the pleading. The bankruptcy court approved the sale of LPG's assets free and clear of claims, expressly including successor-liability claims, and enjoined claims against MLG arising from LPG's pre-closing conduct.

The Complaint therefore fails at the threshold. If Plaintiff's theory depends on the LPG bankruptcy sale, the bankruptcy court's sale order bars it. If Plaintiff relies on some other connection to MLG, the Complaint does not plead one. Those threshold defects, together with the claim-specific pleading failures addressed below, require dismissal under Rule 12(b)(6). At minimum, Plaintiff should be required to provide a more definite statement under Rule 12(e).

II. RELEVANT FACTS

A. The Complaint's Allegations

The Complaint's chronology is unclear from the outset. It alleges that Plaintiff faced financial hardship "[i]n March 2024," but also alleges that he entered into "a contract with Defendant for legal and debt resolution services" "[i]n or around October 2021." Compl. ¶¶ 1, 7.

III. ARGUMENT

D. In the Alternative, the Court Should Grant MLG's Motion for a More Definite Statement Under Rule 12(e).

If any claim survives dismissal, Rule 12(e) relief is warranted. The Complaint does not identify the entity that allegedly contracted with Plaintiff in October 2021, explain how that entity's conduct could be attributed to MLG, or allege when MLG supposedly became involved. As a result, MLG cannot reasonably determine what conduct it must answer. See Comm. for Immigrant Rts., 644 F. Supp. 2d at 1209 (ordering a more definite statement where the complaint was "vague and difficult to reasonably decipher" and the defendant needed "a fair opportunity to frame a responsive pleading").

If the Court does not dismiss the Complaint, MLG requests an order requiring Plaintiff to file a more definite statement identifying:

1. Which entity Plaintiff contracted with in October 2021.
2. What legal theory (successor liability, agency, alter ego, or other) connects that entity's conduct to MLG.
3. When Plaintiff's relationship with MLG specifically began.
4. Which contract governs the relationship with MLG and its specific terms.
5. For each alleged misrepresentation: who made the statement, when, through what medium, and on behalf of which entity.
6. Which payments were made to MLG versus any prior entity, and under which agreement.
7. Which specific post-sale MLG conduct is alleged to violate each statute.

Without those details, MLG cannot determine whether Plaintiff's claims are directed at MLG, LPG, another predecessor entity, or some combination of entities. A more definite statement is therefore necessary if any claim survives dismissal.

IV. CONCLUSION

For the foregoing reasons, MLG respectfully requests that the Court dismiss the Complaint in its entirety. In the alternative, MLG requests that the Court dismiss Counts V and VI, with prejudice as to the October 2021 enrollment-related statements, for failure to satisfy Rule 9(b), and dismiss the remaining counts without prejudice to the filing of an amended complaint that pleads MLG-specific conduct and a cognizable legal theory for attributing pre-incorporation conduct to MLG. In the further alternative, MLG requests that the Court order Plaintiff to file a more definite statement under Rule 12(e) addressing the deficiencies identified above.

Dated: September 4, 2026

DTO LAW

By: /s/ William A. Delgado
William A. Delgado
Attorneys for Defendant
MORNING LAW GROUP, P.C.